

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.217	0.204	0.026	0.275	0.262
Trial Fee-Shifting	0.212	0.177	0.047	0.274	0.236

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.259	0.259	0.011	0.351	0.336
Trial Fee-Shifting	0.211	0.171	0.019	0.280	0.181